

On National Minorities¹

Law of the Republic of Belarus

No. 1926-XII of November 11, 1992

[Amended as of May 7, 2007]

The present Law is based on the Constitution of the Republic of Belarus, principles of international law in the sphere of human rights and national minorities and is aimed at creation of conditions for free development of national minorities as well as protection of rights and legal interests of persons who refer themselves to national minorities.

Article 1. For the purposes of the present Law persons belonging to national minorities are persons permanently residing on the territory of the Republic of Belarus and having citizenship of the Republic of Belarus whose origin, language, culture or traditions are different from those of main population of the republic.

Article 2. Belonging to national minority is a matter of personal choice of a citizen of the Republic of Belarus.

Choice of the citizen of the Republic of Belarus of belonging to national minority does not cause any unfavorable consequences.

Article 3. Citizens of the Republic of Belarus referring themselves to national minorities shall observe the Constitution of the Republic of Belarus and other acts of legislation of the Republic of Belarus, assist to preservation of sovereignty and territorial unity of the Republic of Belarus, respect traditions of the citizens of all nationalities that populate the republic, their language and culture.

Article 4. Any direct or indirect limitation of rights and freedoms of citizens of the Republic of Belarus because of their belonging to national minority as well as attempts of assimilation against their will are prohibited.

Article 5. Nobody can be forced to determine and indicate his (her) national belonging as well as to prove the national belonging or refuse from it.

Article 6. A state guarantees the citizens of the Republic of Belarus referring themselves to national minorities to have equal political, economic and social rights and freedoms enjoyed in order established by legislation of the Republic of Belarus in particular:

right to receive assistance from state for developing national culture and education;

¹

<http://www.law.by/work/EnglPortal.nsf/6e1a652fbefce34ac2256d910056d559/2b9f578afbd75c2256dc100262528?OpenDocument>

right to use native language, right to choose a language for communication as well as right to freely choose the language for upbringing and education;

right to establish mass media, publishing activity as well as to receive, store and disseminate information in native language;

right to establish cultural bonds with countrymen abroad;

right to practice any religion or not to practice any religion, participate in religious cults, rituals, rites using native language;

right to preserve their historical and cultural and spiritual heritage, free development of culture including professional and amateur art;

right to create public associations and enter to public associations;

right to freely elect and to be elected to state bodies of the republic of Belarus on the base of comprehensive, equal, direct and indirect voting right at secret voting;

right to equal access to any offices in state bodies of the Republic of Belarus.

Article 7. Consulting bodies from representatives of national minorities may be created and operate on public basis at local Councils of Deputies. Procedure of their creation is determined by relevant local Councils of Deputies.

Article 8. The state in order established by legislation of the Republic of Belarus assists to creating the conditions for development of education and cultures of national minorities by giving necessary money assets from republican and local budgets.

Article 9. Public associations of citizens referring themselves to national minorities have the right to carry out entrepreneurial activity in accordance with legislation of the Republic of Belarus.

Article 10. Public associations of citizens referring themselves to national minorities may create cultural and enlightenment institutions.

Training of specialists for providing interests of national minorities in the sphere of education and culture is carried out by educational institutions of the Republic of Belarus including training on contractual basis concluded with public associations of citizens referring themselves to national minorities.

Article 11. Historical and cultural values of national minorities are a part of culture of the Republic of Belarus and are protected by state in accordance with legislation of the Republic of Belarus.

Article 12. Creation and activity of public associations of citizens referring themselves to national minorities is prohibited if it contradicts to legislation of the Republic of Belarus on public associations as well as if the mentioned public associations are organizationally connected or are a part of political organization of a foreign state.

Article 13. Citizens of the Republic of Belarus regardless of their national belonging enjoy equal protection of the state.

Any actions aimed at discrimination based on nationality, creation of obstacles in realization of their rights by national minorities, stimulation of hostility among nationalities entail responsibility in accordance with legislation of the Republic of Belarus.

unofficial translation